

CONNOLLY v DE LA CRUZ

23CV46549

**PLAINTIFF'S MOTION TO STRIKE AFFIRMATIVE DEFENSES
AND DEEM REQUESTS ADMITTED**

This civil action stems from a dispute over easement rights between Mark V. Connolly ("Plaintiff") and Francisco de la Cruz ("Defendant"). On July 22, 2024, the Court ordered Defendant to provide detailed and specific verified responses to Plaintiff's Request for Production of Documents, Form Interrogatories, and Special Interrogatories. The Order required a response within thirty (30) days.

Now before the Court is Plaintiff's Motion to 1) Strike Affirmative Defenses, 2) Deem Requests for Admissions Admitted or in the Alternative for Terminating Sanctions.

As to Form Interrogatories 15.1 and 17.1, Plaintiff asserted that the responses were not code compliant because they were not full and complete and refer to other discovery provided elsewhere. The Court agreed, and in its July 22, 2024 Order stated:

Defendant is ordered within 30 days to provide an individual responsive answer providing the required information as to each of its three subparts of Form Interrogatory 15.1 as to each affirmative defense without reference to other discovery responses or an instruction to search the public record.

Defendant is ordered within 30 days to provide an individual responsive answer providing the required information as to each of its four subparts of Form Interrogatory 17.1 as to each of the 24 denied Requests for Admission without reference to other discovery responses or an instruction to search the public record.

Defendant submitted supplemental responses which Plaintiff continues to deem inadequate and non-compliant.

The Court agrees with Plaintiff that the supplemental responses are in a format that is less than exemplary. However, the Court also agrees with the Defendant that he has provided a substantial amount of information and exhibits. In the interests of justice, substance should be elevated over form and the Court finds that Defendant has substantially complied with the Court's July 22, 2024 Order.

Accordingly, Plaintiff's motion is **DENIED** and sanctions are **DENIED** to each party.

The Clerk shall provide notice of this Ruling to the parties forthwith. No further formal Order is required.